

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Charles R. Brehmer
Judge of the Superior Court
County of Kern
1415 Truxtun Avenue
Bakersfield, CA 93301

Re: Ramirez, Ricardo
CDC No.: BE0735
Case No.: LF011083B
Date of Sentence: August 10, 2017

Dear Honorable Charles R. Brehmer:

The purpose of this letter is to provide the court with authority to resentence Ricardo Ramirez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Ramirez was sentenced in 2017, and was convicted of section 245, subdivision (A)(2), Assault With Firearm on Person. The trial court sentenced inmate Ramirez on August 10, 2017. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Ramirez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Ramirez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A handwritten signature in black ink, appearing to read "SCOTT KERNAN", is written over a horizontal line.

SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Amended Felony Information

cc: Honorable Charles R. Brehmer, Kern County Presiding Judge
Kern District Attorney
Public Defender

BE0735

FILED

AUG 21 2017

TERRY McNALLY, CLERK
BY _____ DEPUTY
ENDORSED

1. Defendant was convicted of the commission of the following felony:				YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L. M. U)	SERIOUS FELONY	VIOLENT FELONY	TIME IMPOSED	
COUNT	CODE	SECTION NUMBER	CRIME			JURY	COURT	PLEA				YRS	MOS.
3	PC	245(A)(2)	ASSAULT WITH FIREARM ON PERSON	2016	06/29/17			X	M			3	0

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL	
3	PC 186.22(B)(1)	10 YEARS	PC 12022.7(A)	3 YEARS			13	0

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):
 Restitution Fine(s): \$300 per PC1202.4 (b) forthwith per PC 2085.5 if prison commitment \$300 per PC 1202.45 suspended unless parole is revoked.
 \$ per PC 1202.44 is now due, probation having been revoked.

☐ Includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

8. Other orders (specify):

10. ☐ **MANDATORY SUPERVISION:** Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: Served forthwith:

12. Registration Required: ☒ per (specify code section): PC 186.30

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ county jail ☐ Other (specify):

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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